MAHATMA GANDHI UNIVERSITY
FOURTH SEMESTER EXAMINATION (2024 ADMISSION ONWARDS)
MODEL QUESTION PAPER
Course Code: MG4VACCOM200- Intellectual Property Rights

Time: 1 Hour Maximum Marks: 50

Students should attend at least one question from each course outcome to enhance their overall outcome attainability

PART

A Multiple Choice Question- Answer any 20 questions.

Each question carries 1 mark each

1. Intellectual Property primarily protects: (U, CO1)
a) Physical goods
b) Financial assets
c) Creations of the mind
d) Natural resources

2. The main objective of IPR is to: (U,CO1)
a) Eliminate competition
b) Encourage innovation
c) Control trade
d) Increase taxation

3. Which of the following is a type of IPR? (U, CO2)
a) Patent
b) Lease
c) Mortgage
d) Bond

4. Patent protection in India is granted for: (U, CO3)
a) 10 years
b) 15 years
c) 20 years
d) Lifetime

5. A patent requires: (U, CO3)
a) Novelty
b) Inventive step
c) Industrial applicability
d) All the other options

6. Copyright protects: (U, CO3)
a) Ideas
b) Expression of ideas
c) Facts
d) Discoveries

7. Trademark registration requires the mark to be: (A, CO3)
a) Generic
b) Distinctive

c) Secret
d) Descriptive only

8. Trade secrets are protected through: (A, CO3)
a) Registration
b) Secrecy measures
c) Patent filing
d) Copyright

9. The TRIPS Agreement is administered by: (U, CO2)
a) WIPO
b) WTO
c) IMF
d) WHO

10. The Madrid Protocol relates to: (U,CO2)
a) Patents
b) Copyright
c) International trademark registration
d) Trade secrets

11. PCT stands for: (U,CO2)
a) Patent Copyright Treaty
b) Patent Cooperation Treaty
c) Public Cooperation Treaty
d) Product Control Treaty

12. Moral rights protect the: (A,CO3)
a) Commercial value
b) Reputation of author
c) Patent duration
d) Brand logo

13. Passing off is related to: (U, CO4)
a) Patent
b) Trademark
c) Copyright
d) Design

14. Licensing helps businesses to: (A,CO5)
a) Lose ownership
b) Generate revenue
c) Avoid innovation
d) Cancel patent

15. Assignment of IPR means: (U,CO5)
a) Temporary transfer
b) Permanent transfer
c) Public use
d) Compulsory license

16. Geographical Indication protects: (U, CO2)
a) Software

b) Regional products
c) Logos
d) Patents

17. Trade dress refers to: (U,CO4)
a) Company uniform
b) Product packaging and appearance
c) Trade license
d) Business name

18. AI-generated inventions raise issues of: (A, CO4)
a) Inventorship
b) Taxation
c) Licensing
d) Advertising

19. Industrial designs protect: (U, CO3)
a) Function
b) Appearance
c) Formula
d) Idea

20. Patent infringement remedy includes: (A, CO4)
a) Injunction
b) Damages
c) Account of profits
d) All the other options

21. Copyright duration is generally: (U,CO3)
a) 20 years
b) 60 years after author's death
c) 10 years
d) 30 years

22. Trade secrets are subject to: (U, CO3)
a) Expiry
b) Theft
c) Registration
d) Renewal

SECTION B (15 × 2 = 30)

Answer any 15 questions. Each question carries 2 marks.

23. **Statement I:** Compulsory licensing is primarily provided under patent law.
Statement II: Compulsory licensing allows the government to permit use of a patented invention without the consent of the patent holder under certain conditions.

a) Both Statement I and Statement II are correct
b) Only Statement I is correct
c) Only Statement II is correct
d) Both Statement I and Statement II are incorrect (A, CO4)

24. **Statement I:** Copyright protection requires the work to be fixed in a tangible form.
Statement II: Registration is mandatory to obtain copyright protection in India.

a) Both Statement I and Statement II are correct
b) Only Statement I is correct
c) Only Statement II is correct
d) Both Statement I and Statement II are incorrect (An.CO3)

25. **Assertion (A):** Abuse of patent dominance may result in anti-competitive practices in the market.
Reason (R): A patent holder may misuse exclusive rights to restrict competition or impose unfair conditions.

a) Both A and R are true and R is correct explanation of A
b) Both A and R are true but R is not correct explanation of A
c) A is true but R is false
d) A is false but R is true (A, CO4)

26. **Assertion (A):** The Paris Convention and the Berne Convention deal with different categories of intellectual property.
Reason (R): The Paris Convention primarily covers industrial property such as patents and trademarks, while the Berne Convention protects literary and artistic works.

a) Both A and R are true and R is correct explanation of A
b) Both A and R are true but R is not correct explanation of A
c) A is true but R is false
d) A is false but R is true (A, CO2)

27. A hospital develops a new surgical technique for treating heart disease and applies for patent protection in India.

Statement I: A surgical method for treatment of humans is not patentable under Indian patent law.
Statement II: A new drug molecule or innovative machine can be patentable if it satisfies the conditions of novelty, inventive step, and industrial applicability.

a) Both Statement I and Statement II are correct
b) Only Statement I is correct
c) Only Statement II is correct
d) Both Statement I and Statement II are incorrect (An.CO3)

28. **Assertion (A):** A patent grants exclusive rights for 20 years.
Reason (R): Patent protection encourages innovation by providing temporary monopoly.
a) Both A and R are true and R is correct explanation of A
b) Both A and R are true but R is not correct explanation of A
c) A is true but R is false
d) A is false but R is true (A,CO1)

29**. Assertion (A):** Trade secrets are subject to theft.
Reason (R): Trade secrets require registration under Patent Act.
a) Both A and R are true

b) Both A and R are false
c) A is true but R is false
d) A is false but R is true (An,CO3)

30. **Statement I:** Damages are awarded in IPR cases to compensate the rights holder for financial loss.
Statement II: Damages are granted to extend the duration of patent protection.

a) Both Statement I and Statement II are correct
b) Only Statement I is correct
c) Only Statement II is correct
d) Both Statement I and Statement II are incorrect (A, CO4)

31. **Statement I:** Digital technologies enable businesses to monetize their intellectual property globally through online licensing.
Statement II: Digital distribution reduces opportunities for copyright protection.

a) Both Statement I and Statement II are correct
b) Only Statement I is correct
c) Only Statement II is correct
d) Both Statement I and Statement II are incorrect (An,CO5)

32. **Statement I:** Registration of a trademark provides exclusive statutory rights to the owner.
Statement II: An unregistered trademark can never be protected under Indian law.

a) Both Statement I and Statement II are correct
b) Only Statement I is correct
c) Only Statement II is correct
d) Both Statement I and Statement II are incorrect (An, CO3)

33. **Assertion (A):** Exclusive licensing restricts the licensor from granting similar rights to other licensees.
Reason (R): Exclusive licensing provides monopoly rights to multiple licensees in the same territory.
a) Both A and R are true and R is correct explanation of A
b) Both A and R are true but R is not correct explanation of A
c) A is true but R is false
d) A is false but R is true (A,CO4)

34. **Assertion (A):** Moral rights protect the author's reputation and integrity of the work.
Reason (R): Moral rights can be fully transferred to another person through assignment.

a) Both A and R are true and R is correct explanation of A
b) Both A and R are true but R is not correct explanation of A
c) A is true but R is false
d) A is false but R is true (An,CO2)

35. **Assertion (A):** AI-generated artistic works raise questions about copyright ownership.
Reason (R): Copyright law traditionally grants protection to works created by human authors.

a) Both A and R are true and R is correct explanation of A
b) Both A and R are true but R is not correct explanation of A
c) A is true but R is false
d) A is false but R is true (An,CO5)

36. **Assertion (A):** Harmonization of IPR laws promotes consistency in global trade practices.
Reason (R): Harmonization eliminates the sovereignty of national legal systems.

a) Both A and R are true and R is correct explanation of A
b) Both A and R are true but R is not correct explanation of A
c) A is true but R is false
d) A is false but R is true (An,CO2)

37. **Assertion (A):** Overvaluation of intellectual property may lead to poor strategic business decisions.
Reason (R): Accurate valuation helps in realistic pricing, licensing, and investment planning.

a) Both A and R are true and R is correct explanation of A
b) Both A and R are true but R is not correct explanation of A
c) A is true but R is false
d) A is false but R is true (A,CO4)

38. **Statement I:** Patents and trademarks increase the market value of a company.
Statement II: Intellectual property has no relevance in attracting investors.

a) Both Statement I and Statement II are correct
b) Only Statement I is correct
c) Only Statement II is correct
d) Both Statement I and Statement II are incorrect (An,CO2)

39. **Statement I:** An unregistered trademark cannot be protected under Indian law.
Statement II: Passing off action protects business goodwill even without registration.

a) Both Statement I and Statement II are correct
b) Only Statement I is correct
c) Only Statement II is correct
d) Both Statement I and Statement II are incorrect (An, CO3)A

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